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Argument for Plaintiff in Error.

or agreement in respect to the title, to additionally swear to such facts on final proof, and a regulation of the Land Commissioner exacting such additional statement at the time of final hearing is invalid.

While Congress has given the Land Commissioner power to prescribe regulations to give effect to the Timber and Stone Act, the rules prescribed must be for the enforcement of the statute and not destructive of the rights which Congress has conferred by the statute.

THE facts are stated in the opinion.

*Mr. Charles A. Keigwin* and *Mr. Charles A. Douglas*, with whom *Mr. W. B. Matthews* and *Mr. E. B. Sherrill* were on the brief, for plaintiff in error:

Plaintiff in error, being at the time of the trial a member of the House of Representatives of the United States, was not subject to arrest except for treason, felony or breach of the peace. Constitution U. S., Art. I, § 6.

Felonies, in the sense of the Constitution and of Federal statutes, are only such offenses as were felonies at common law or so declared by statute. *Reagan v. United States*, 157 U. S. 301; *Bannon v. United States*, 156 U. S. 464. So as to conspiracy, which is not a felony simply because it is an infamous offense. *Bannon v. United States*, *supra*; *Mackin v. United States*, 117 U. S. 348; *Ex parte Wilson*, 114 U. S. 417.

The phrase "breach of the peace" means only actual breaches of the peace, offenses involving violence or public disturbance. As to other misdemeanors, the parliamentary privilege applies, as in libel. *Rex v. Wilkes*, 2 Wilson, 151; *Ware v. Circuit Judge*, 75 Michigan, 488; *Estes v. State*, 2 Humphrey, 496.

The constitutional immunity from arrest includes immunity from imprisonment, save in the cases excepted. The arrest is prohibited, not because a mere arrest is likely to impair the discharge of legislative duty, but because it implies and leads to imprisonment which does have that effect.

An indictment which charges a conspiracy between two or more persons to solicit or attempt to suborn other persons, not parties to the conspiracy, to commit perjury, does not charge a conspiracy to commit an offense against the United